Supreme Court Judgement: It ruled that the right to education is a fundamental right under Article 21. In fact, it declared that this right extends up to any level including the professional education like engineering and medicine. It observed that the right to life under Article 21 and the dignity of an individual cannot be assured unless it is accompanied by the right to education. It argued that without making right to education under Article 41 a reality, the fundamental rights enshrined under Part III shall remain beyond the reach of the large majority which is illiterate. It thus declared that the right to education is concomitant to the fundamental rights. It further observed that the state is under a constitutional mandate to provide educational institutions at all levels for the benefit of the citizens. It declared that charging capitation fee for admission amounted to a patent denial of a citizen's right to education and is wholly arbitrary and as such violative of Article 14. It described the capitation fee as nothing but a price for selling education. It opined that the concept of "teaching shops" is contrary to the constitutional scheme.

Impact of the Judgement: This judgement formed the basis for the later judgement delivered by the Supreme Court in the *Unni Krishnan* case[14] (1993) that led to the passing of the 86th Amendment Act (2002). In this case, the Supreme Court was asked to examine the correctness of the *Mohini Jain's* judgement. The petitioners contended that if the *Mohini Jain's* judgement was followed by the state governments, they would have to close down their engineering and medical colleges. In this later judgement, the Supreme Court party upheld and partly overruled the *Mohini Jain's* judgement. This is explained below in the next case.

Unni Krishnan Case (1993)

Name of the Case	: Unni Krishnan vs. State of A.P.
Year of Judgement	: 1993
Popular Name	: —
Related Topic/Issue	: Right to education
Related Article/Schedule	: 21 & 45

Supreme Court Judgement: It held that the right to education is a fundamental right under Article 21 and that this right directly flows from the right to life. But, it declared that only children have right to free education until they complete the age of 14 years. After that age, the obligation of the state to provide education depends on its economic capacity and development. The court also said that the state is obliged to follow directions contained in Article 45 which originally (prior to its amendment in 2002) provided for free and compulsory education for all children upto the age of 14 years. The Article 21 is to be construed in the light of Articles 41, 45 and 46 contained in Part IV dealing with the Directive Principles of State Policy. The obligations created by Articles 41, 45 and 46 can be discharged by the state either by establishing its own institutions or by aiding, recognising or granting affiliation to private educational institutions. Further, the court held that the private unaided educational institutions running professional courses like engineering and medical are entitled to charge a higher fee than that of the government institutions. But such a fee cannot exceed the ceiling fixed in this regard and commercialisation of education is not permissible.